

SecureOps Command — Master Subscription Agreement

Provider: SOBBU LLC ("SOBBU", "Provider", "we", "us") **Customer:** [CUSTOMER LEGAL NAME] ("Customer", "you")
Effective Date: [EFFECTIVE DATE]

***IMPORTANT — NOT LEGAL ADVICE.** This document is a template prepared to reflect how the SecureOps Command platform operates. It is **not** legal advice and is **not** a substitute for review by a licensed attorney in your jurisdiction. Bracketed [ALL - CAPS] fields must be completed, and the whole agreement should be reviewed by counsel before it is signed or relied upon. SOBBU LLC's state of formation, principal address, insurance, pricing, and county of venue must be confirmed by you.*

1. Definitions

- **"Platform" / "SecureOps Command"** — the security-operations software-as-a-service owned, developed, and operated by SOBBU, comprising the hosted backend/API, the web admin portal, the public website, and the shared mobile applications (iOS/Android), together with related documentation and updates.
- **"Customer Deployment"** — the dedicated instance provisioned for Customer (its own backend, database, admin/web surface, and branding), reachable through Customer's assigned organization code and/or domain.
- **"Authorized Users"** — individuals Customer permits to access the Platform, including Customer's administrators, dispatchers, site managers, and security officers (whether employees or 1099 contractors of Customer).
- **"Customer Data"** — all data Customer or its Authorized Users submit to or generate in the Platform, including personnel/HR records, payroll and banking details, incident reports, schedules, time entries, chat messages, and location data.
- **"Order Form"** — an ordering document (Exhibit A) referencing this Agreement that sets out the subscribed tier, fees, term, and any deployment specifics.
- **"Sub-processor"** — a third party engaged by SOBBU to process Customer Data in the course of providing the Platform (see Exhibit B).
- **"Stated Safeguards"** — the specific security measures described in Section 6.2, as they exist at the relevant time.
- **"Committed Term Fees"** — all fees for the entirety of the then-current initial term or renewal term stated in the Order Form, whether or not yet invoiced.

2. The Service and License Grant

2.1 Grant. Subject to this Agreement and payment of fees, SOBBU grants Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Platform and the Customer Deployment for Customer's internal security-operations business.

2.2 Shared mobile application. Customer acknowledges that one shared mobile application build serves all SOBBU customers and routes each device to the correct backend by organization code. Customer receives a tenant within that shared build, not a separate app-store listing, unless separately agreed in an Order Form.

2.3 Provisioning. SOBBU will provision the Customer Deployment, register Customer's organization code in the directory, and enable Customer to configure its own branding (name, colors, logo) and feature flags. Customer is responsible for the accuracy of its branding and configuration.

2.4 Updates. SOBBU may update, improve, or modify the Platform. SOBBU will use reasonable efforts to avoid materially degrading core functionality during the Term.

3. Customer Responsibilities

3.1 Authorized Users and credentials. Customer is responsible for all activity under its accounts and credentials (whether or not authorized by Customer), for provisioning and de-provisioning Authorized Users, for assigning appropriate roles and permission levels, and for keeping credentials confidential. Customer will promptly disable access for personnel who leave or change roles and will notify SOBBU promptly of any suspected compromise of an account or credential. Customer will ensure Authorized Users comply with the User Agreement (Terms of Service / EULA).

3.2 Employment and operations. SOBBU provides software only. Customer is solely responsible for its own employment, contractor, licensing, scheduling, wage-and-hour, tax (including 1099 reporting), insurance, and security-services obligations to its personnel and its clients. SOBBU is not Customer's employer, payroll agent, or co-employer, and does not direct security operations.

3.3 Lawful use and accuracy. Customer is responsible for the legality, accuracy, and quality of Customer Data and for obtaining all consents and notices required to collect and process its personnel's and clients' information through the Platform (including consent to GPS location capture while clocked in, push notifications, and any SMS).

3.4 Customer's own end-user disclosures. Where Customer presents its own branded privacy policy and terms to its Authorized Users, Customer is responsible for the accuracy and legal sufficiency of those disclosures.

4. Acceptable Use

Customer will not, and will not permit any Authorized User or third party to:

- access or use the Platform outside the rights granted, or beyond a user's assigned role;
- resell, sublicense, or provide the Platform to third parties except Customer's own Authorized Users and the limited operational data shared with Customer's own clients;
- reverse engineer, decompile, or attempt to derive source code, except as permitted by law;
- probe, scan, scrape, or attempt to defeat security or access controls, or access another tenant's data;
- introduce malware or other harmful code, or launch or facilitate any denial-of-service or other attack on the Platform;
- upload unlawful, infringing, harassing, or malicious content, or use the Platform to violate any law (including TCPA, wage-and-hour, or data-protection laws); or
- misuse safety features (e.g., the emergency button) or falsify clock-in/out, incident, or payroll records.

Customer acknowledges that a breach of this Section 4 may cause SOBBU irreparable harm for which money damages are inadequate, and that SOBBU is entitled to seek injunctive relief in addition to all other remedies.

5. Customer Data; Ownership

5.1 Ownership. As between the parties, Customer owns all Customer Data. Customer grants SOBBU a worldwide, non-exclusive license to host, copy, transmit, process, and display Customer Data solely to provide, secure, and support the Platform and as otherwise permitted in this Agreement.

5.2 Aggregated/anonymized data. SOBBU may generate and use aggregated, de-identified statistics that do not identify Customer, any individual, or Customer's clients, to operate and improve the Platform.

5.3 Export and deletion. During the Term, Customer may export its data through available Platform features. On termination, see Section 8.4.

6. Data Protection and Security

6.1 Roles. For personal data processed through the Platform, Customer is the controller (or equivalent) and SOBBU is the processor acting on Customer's documented instructions (this Agreement and the Order Form being such instructions). The data-processing terms in Exhibit B apply.

6.2 Security measures. SOBBU will maintain commercially reasonable administrative, technical, and organizational safeguards designed to protect Customer Data, including encryption in transit (TLS), password hashing, role-based access control, signed URLs for private files, tenant isolation, and audit logging of sensitive administrative actions (the "Stated Safeguards").

6.3 Sub-processors. Customer authorizes SOBBU to engage the Sub-processors listed in Exhibit B (e.g., cloud hosting, object storage, email delivery, push-notification gateway, and, where enabled, SMS and payment processors). SOBBU remains responsible for its Sub-processors' performance of the obligations in this Section.

6.4 Incident notification. SOBBU will notify Customer without undue delay after becoming aware of a confirmed breach of security leading to the unlawful destruction, loss, alteration, or unauthorized disclosure of Customer Data, and will provide information reasonably available to assist Customer's own breach-response obligations. **Any notification, cooperation, or remediation under this Section is provided as a courtesy and to enable compliance, and is not, and shall not be construed as, an admission of fault, negligence, wrongdoing, or liability by SOBBU.**

6.5 Customer-side security. Customer is solely responsible for security within its control, including: (a) the security of Customer's and its Authorized Users' devices, networks, and systems; (b) account and credential hygiene, including password strength and confidentiality; (c) role assignments and permission levels within the Customer Deployment; (d) timely offboarding and de-provisioning of departed or reassigned personnel; and (e) losses arising from compromised Customer-side credentials, phishing or social engineering of Customer's personnel, or Customer-side device or network compromise.

6.6 No security guarantee; allocation of risk for third-party attacks. Customer acknowledges that no software, hosting environment, or security program can guarantee prevention of every intrusion, and that determined third parties may develop methods to defeat even well-designed safeguards. **TO THE MAXIMUM EXTENT PERMITTED BY LAW, SOBBU IS NOT LIABLE FOR ANY LOSS, DAMAGE, CLAIM, OR EXPENSE ARISING FROM UNAUTHORIZED THIRD-PARTY ACCESS TO, OR INTERFERENCE WITH, THE PLATFORM OR CUSTOMER DATA — INCLUDING HACKING, CREDENTIAL THEFT, PHISHING, MALWARE, RANSOMWARE, DENIAL-OF-SERVICE ATTACKS, OR EXPLOITATION OF PREVIOUSLY UNKNOWN ("ZERO-DAY") VULNERABILITIES — EXCEPT TO THE EXTENT SUCH UNAUTHORIZED ACCESS OR INTERFERENCE IS DIRECTLY CAUSED BY SOBBU'S FAILURE TO MAINTAIN THE STATED SAFEGUARDS.** Any liability SOBBU does have under this Section is subject to Section 13 in all respects.

7. Fees and Payment

7.1 Fees. Customer will pay the fees in the applicable Order Form (Exhibit A). Unless stated otherwise, fees are quoted in U.S. dollars and are due net [PAYMENT TERM DAYS] days from the invoice date.

7.2 Non-refundable; non-cancelable; no set-off. Except as expressly stated in this Agreement, all fees and payment obligations are **non-refundable and non-cancelable**, and subscription quantities and committed terms cannot be decreased during the Term. Customer will pay all amounts due **without any deduction, withholding, counterclaim, recoupment, or set-off of any kind**, whether arising under this Agreement or otherwise. A good-faith dispute of a

specific invoiced line item must be raised in writing within [INVOICE DISPUTE DAYS] days of the invoice date, with reasonable detail, and does not excuse payment of any undisputed amounts.

7.3 Taxes. Fees are exclusive of taxes; Customer is responsible for applicable sales, use, and similar taxes, excluding taxes on SOBBU's net income.

7.4 Late payment; interest. Any amount not paid when due accrues interest from the due date until paid in full at the **lesser of [LATE-FEE RATE PERCENT]% per month or the maximum rate permitted by Texas law**, compounded monthly to the extent permitted by law.

7.5 Suspension and termination for non-payment. If any amount is past due, SOBBU may, after [NONPAYMENT NOTICE DAYS] days' written notice of the past-due balance: (a) suspend Customer's and all Authorized Users' access to the Platform until all past-due amounts (including accrued interest) are paid in full; and/or (b) terminate this Agreement for cause under Section 8.2. Suspension does not relieve Customer of its obligation to pay fees for the suspension period, and SOBBU is not liable for any consequence of a suspension under this Section.

7.6 Acceleration. If SOBBU terminates this Agreement for Customer's non-payment or other material breach, **all remaining Committed Term Fees for the then-current term become immediately due and payable in full**, in addition to all amounts already accrued, together with interest under Section 7.4.

7.7 Collection costs and attorneys' fees. Customer will reimburse SOBBU for **all costs and expenses of collection** of any amount owed under this Agreement, including collection-agency fees, court costs, expert and witness fees, and reasonable attorneys' fees, in accordance with Chapter 38 of the Texas Civil Practice and Remedies Code and any other applicable law. This obligation is in addition to, and not in place of, the amounts owed.

7.8 Remedies cumulative. SOBBU's rights under this Section 7 are cumulative and in addition to all other rights and remedies available at law or in equity.

8. Term and Termination

8.1 Term. This Agreement begins on the Effective Date and continues for the initial term stated in the Order Form, then renews for successive periods of equal length unless either party gives written notice of non-renewal at least [RENEWAL NOTICE DAYS] days before the end of the then-current term.

8.2 Termination for cause. Either party may terminate for the other's material breach not cured within [CURE PERIOD DAYS] days after written notice (or immediately for a breach of Section 4 (Acceptable Use), Section 9 (Confidentiality), or Section 10 (Intellectual Property) that is not curable). Non-payment past the notice period in Section 7.5 is a material breach.

8.3 Suspension. SOBBU may suspend access where necessary to prevent harm to the Platform, other customers, or third parties, or as required by law, and will restore access promptly once the cause is resolved. Suspension for non-payment is governed by Section 7.5.

8.4 Effect of termination. On termination or expiration, Customer's right to access the Platform ends, and all amounts owed (including any amounts accelerated under Section 7.6) are immediately due. SOBBU will make Customer Data available for export for [EXPORT WINDOW DAYS] days — provided Customer's account is paid in full — after which SOBBU may delete Customer Data in the ordinary course, except for data SOBBU must retain to comply with law. Customer remains responsible for retaining records it is legally required to keep (e.g., payroll, tax, incident logs).

8.5 Survival. Sections 1, 5.2, 6.4, 6.6, 7 (with respect to all accrued and accelerated amounts, interest, and collection costs), 8.4, 8.5, 9, 10, 11.2, 12, 13, 14, and 15, and Exhibit C (if executed), survive termination or expiration of this Agreement.

9. Confidentiality

Each party may receive the other's non-public information ("Confidential Information"). The receiving party will use it only to perform under this Agreement, protect it with at least reasonable care, and not disclose it except to personnel and advisors with a need to know who are bound by similar obligations. This does not apply to information that is public through no fault of the receiver, independently developed, or rightfully received from a third party. A party may disclose Confidential Information if legally compelled, with reasonable prior notice where lawful.

10. Intellectual Property

10.1 SOBBU IP. SOBBU and its licensors own all right, title, and interest in the Platform, including all software, designs, documentation, and improvements. No rights are granted except as expressly stated.

10.2 Feedback. If Customer provides suggestions or feedback, SOBBU may use it without restriction or obligation.

11. Warranties and Disclaimers

11.1 Mutual. Each party warrants it has the authority to enter into this Agreement, and the individual signing for Customer warrants he or she is authorized to bind Customer.

11.2 Disclaimer. EXCEPT AS EXPRESSLY STATED, THE PLATFORM IS PROVIDED "AS IS" AND "AS AVAILABLE." SOBBU DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. SOBBU DOES NOT WARRANT UNINTERRUPTED, ERROR-FREE, OR FULLY SECURE OPERATION, AND THE PLATFORM IS NOT A SUBSTITUTE FOR 911 OR PROFESSIONAL EMERGENCY SERVICES.

12. Indemnification

12.1 By SOBBU. SOBBU will defend Customer against third-party claims alleging the Platform, as provided and used in accordance with this Agreement, infringes that third party's intellectual-property rights, and will pay resulting damages finally awarded or agreed in settlement. SOBBU has no obligation for claims arising from Customer Data, Customer's configuration, or use outside this Agreement. SOBBU's obligations under this Section 12.1 are subject to the cap in Section 13.2.

12.2 By Customer. Customer will defend, indemnify, and hold harmless SOBBU and its members, managers, officers, and personnel against third-party claims (including claims by Customer's Authorized Users, personnel, or clients) arising from: (a) Customer Data; (b) Customer's or its Authorized Users' use of the Platform in violation of this Agreement or law; (c) Customer's employment, contractor, wage, tax, or security-services obligations; or (d) compromised Customer-side credentials, devices, role assignments, or offboarding failures (Section 6.5) — and will pay resulting damages, costs, and reasonable attorneys' fees finally awarded or agreed in settlement.

12.3 Procedure. The indemnified party will give prompt notice, reasonable cooperation, and control of the defense to the indemnifying party (no settlement imposing liability on the indemnified party without consent).

13. Limitation of Liability

13.1 Exclusion. TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY IS LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, REVENUE, OR DATA.

13.2 Cap on SOBBU's liability. TO THE MAXIMUM EXTENT PERMITTED BY LAW, SOBBU'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT — **INCLUDING SOBBU'S INDEMNIFICATION OBLIGATIONS UNDER SECTION 12.1 AND ANY CLAIM RELATING TO A SECURITY INCIDENT, DATA BREACH, OR UNAUTHORIZED ACCESS** — WILL NOT EXCEED THE FEES ACTUALLY PAID BY CUSTOMER TO SOBBU IN THE [CAP MONTHS] MONTHS BEFORE THE EVENT GIVING RISE TO THE CLAIM.

13.3 Customer obligations not capped. The exclusions in Section 13.1 and the cap in Section 13.2 do **not** limit or apply to: (a) Customer's payment obligations under Section 7 (including accelerated fees, interest, and collection costs); (b) Customer's indemnification obligations under Section 12.2; (c) Customer's or its Authorized Users' misuse of the Platform or breach of Section 4; or (d) Customer's breach of Section 9 (Confidentiality) or infringement or misappropriation of SOBBU's intellectual property.

13.4 Basis of the bargain. The allocations of risk in Sections 6.6, 11, 12, and 13 are an essential basis of the bargain between the parties, and the fees reflect them. They apply even if a limited remedy fails of its essential purpose, to the maximum extent permitted by law.

14. Compliance with Laws

Each party will comply with laws applicable to its performance. Customer is solely responsible for compliance obligations arising from its operation of a security-services business and its handling of personnel and client data, including any sector-specific licensing.

15. General

15.1 Governing law and venue. This Agreement is governed by the laws of the State of Texas, without regard to conflict-of-laws rules. Subject to Section 15.2, the parties consent to the **exclusive jurisdiction and venue of the state and federal courts located in [SOBBU VENUE COUNTY] County, Texas**, and waive any objection based on inconvenient forum, except that SOBBU may seek injunctive relief or collect amounts owed in any court of competent jurisdiction.

15.2 Waiver of jury trial. TO THE MAXIMUM EXTENT PERMITTED BY LAW, **EACH PARTY KNOWINGLY, VOLUNTARILY, AND IRREVOCABLY WAIVES ITS RIGHT TO A TRIAL BY JURY** in any action or proceeding arising out of or relating to this Agreement.

15.3 Prevailing-party attorneys' fees. In any action or proceeding arising out of or relating to this Agreement, the prevailing party is entitled to recover its reasonable attorneys' fees, court costs, and expenses from the other party, in addition to any other relief awarded. This Section does not limit SOBBU's rights under Section 7.7.

15.4 Independent contractors. The parties are independent contractors; nothing creates a partnership, joint venture, agency, or employment relationship.

15.5 Assignment. Neither party may assign this Agreement without the other's consent, except to a successor in a merger or sale of substantially all assets, on notice.

15.6 Force majeure. Neither party is liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, **including third-party cyberattacks such as distributed denial-of-service (DDoS) attacks, ransomware, and exploitation of previously unknown ("zero-day") vulnerabilities**, as well as acts of God, war, terrorism, labor disputes, governmental action, utility or internet failures, and failures of third-party hosting or infrastructure providers.

15.7 Notices. Notices must be in writing to the contacts on the Order Form and are effective on receipt; notices to SOBBU: [NOTICE EMAIL] / [SOBBU PRINCIPAL ADDRESS].

15.8 **Entire agreement; order of precedence.** This Agreement and its Exhibits and Order Forms are the entire agreement and supersede prior understandings. In a conflict, an Order Form controls over the body of this Agreement for the deal-specific terms it addresses.

15.9 **Amendments; waiver; severability.** Amendments must be in writing and signed. A waiver is effective only if in writing. If any provision is unenforceable, it will be enforced to the maximum extent permissible and the rest remains in effect.

15.10 **No third-party beneficiaries.** This Agreement does not create rights for any third party, including Authorized Users or Customer's clients.

Signatures

SOBBU LLC By: _____ Name: _____ Title: _____ Date: _____

[CUSTOMER LEGAL NAME] By: _____ Name: _____ Title: _____
Date: _____

Exhibit A — Order Form (template)

Field	Value
Customer legal name	[CUSTOMER LEGAL NAME]
Organization code	[ORG CODE]
Deployment domain	[CUSTOMER DOMAIN]
Subscription tier / features	[TIER]
Fees	[AMOUNT] per [BILLING PERIOD]
Initial term	[TERM]
Payment terms	Net [PAYMENT TERM DAYS] days
Billing contact	[BILLING CONTACT NAME / EMAIL]

Exhibit B — Data Processing Terms and Sub-processors (summary)

- **Subject matter / duration:** processing of Customer Data to provide the Platform for the Term.
- **Nature and purpose:** hosting, storage, transmission, security, and support of security-operations data.
- **Categories of data subjects:** Customer's administrators, officers/contractors, and limited client-contact data.
- **Categories of personal data:** identity and contact data; employment/HR data (including, as configured, government-ID details, license data, and emergency contacts); payroll and bank-account data; incident content; location data; device and log data.
- **Special handling:** emergency-contact phone numbers are captured for manual/911 use only and are never used as SMS recipients by the Platform.

- **Processor obligations:** process only on documented instructions; ensure personnel confidentiality; implement the security measures in Section 6.2; assist with data-subject requests and breach notification; delete or return data on termination per Section 8.4; permit reasonable audits subject to confidentiality.
- **Sub-processor categories (current):** cloud application hosting; managed object storage; transactional email delivery; mobile push-notification gateway; (optional, where enabled) SMS provider and payment processor. A current list of named Sub-processors is available from SOBBU on request.

Exhibit C — Personal Guaranty (optional)

This Exhibit C applies only if signed below. It is a separate, personal obligation of the Guarantor and should be reviewed by the Guarantor's own counsel.

For value received, and to induce SOBBU LLC to enter into and continue performing under this Agreement, the undersigned ("Guarantor"), an owner or principal of [CUSTOMER LEGAL NAME], **personally, absolutely, unconditionally, and irrevocably guarantees** to SOBBU the full and prompt payment of **all amounts now or hereafter owed by Customer under this Agreement**, including all fees (whether accrued or accelerated under Section 7.6), interest under Section 7.4, collection costs and attorneys' fees under Section 7.7, and amounts owed under Sections 12.2 and 15.3.

This is a guaranty of **payment, not merely of collection**: SOBBU may proceed directly against Guarantor without first pursuing Customer or any other remedy. Guarantor waives, to the maximum extent permitted by law, notice of acceptance, presentment, demand, protest, notice of non-payment, and all suretyship defenses, and agrees that this Guaranty remains in effect notwithstanding any amendment, renewal, extension, waiver, or indulgence granted to Customer, without notice to Guarantor. Guarantor will reimburse SOBBU for all costs and reasonable attorneys' fees incurred in enforcing this Guaranty. **This Guaranty survives termination or expiration of the Agreement** and remains in force until all guaranteed amounts are paid in full. This Guaranty is governed by Texas law, and Guarantor consents to venue and jury-trial waiver as set out in Sections 15.1 and 15.2.

GUARANTOR (individually) Signature: _____ Name: [GUARANTOR NAME] Title/Relationship to Customer: [GUARANTOR TITLE] Date: _____ Address: [GUARANTOR ADDRESS]